

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

**KHAMIR GRANT AND KAREEM
RICHARDS,**

Plaintiff,

-against-

**THE CITY OF NEW YORK; OFFICER
JOHN DOE #1; OFFICER JOHN DOE #2;
and OFFICER JOHN DOE #3,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Kings County as
the place of trial

To the above-named Defendants:

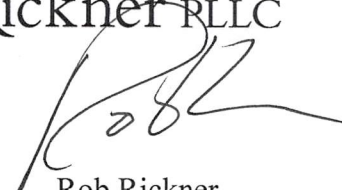
You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
April 27, 2021

Rickner PLLC

By:


Rob Rickner

14 Wall Street, Ste. 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS****KHAMIR GRANT AND KAREEM
RICHARDS,**

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**THE CITY OF NEW YORK; OFFICER
JOHN DOE #1; OFFICER JOHN DOE #2;
and OFFICER JOHN DOE #3,**

Defendants.

Index No.:

VERIFIED COMPLAINT

Plaintiffs Khamir Grant and Kareem Richards, by their attorneys, Rickner PLLC,
complaining of the Defendants, alleges, upon information, belief, and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department ("NYPD"), who violated Plaintiffs' rights under the Constitution of the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiffs' rights under the Fourth, Fifth, and Fourteenth Amendments to the Constitution.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, because the Plaintiffs' claims arose in the County of Kings.

5. Plaintiffs have been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

6. Plaintiff Khamir Grant is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

7. Plaintiff Kareem Richards is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

8. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

9. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

10. Defendant John Doe #1 (Shield No. Unknown) (hereinafter "Doe #1") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment. He is sued in an individual capacity.

11. Defendant John Doe #2 (Shield No. Unknown) (hereinafter "Doe #2") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment. He is sued in an individual capacity.

12. Defendant John Doe #3 (Shield No. Unknown) (hereinafter “Doe #3”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment. He is sued in an individual capacity.

13. The true names and shield numbers of Defendant Does 1–3 are not currently known to the Plaintiffs. However, they are employees or agents of the NYPD. Accordingly, Does 1–3 are entitled to representation in this action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiffs intend to name said officers as defendants in an amended pleading once their true names and shields number are known; and (b) that the Law Department should immediately begin preparing their defense in this action.

14. Collectively, Does 1–3 are referred to as the “Individual Defendants.”

15. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

16. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

17. On March 31, 2021, Plaintiffs were lawfully driving southbound on Flatbush Avenue in Brooklyn, New York, when they were cut off by an unmarked car and immediately forced to a stop.

18. Three NYPD officers, the Individual Defendants, immediately exited the unmarked vehicle with their guns drawn, shouting contradictory commands at Plaintiffs.

19. Almost instantly, Doe #1 broke the passenger side window where Grant was seated, attempted to pull his arm through the broken glass, discharged his taser into the terrified passenger, pulled Grant out of the car, handcuffed him, and searched his person.

20. Richards, who was driving, was simultaneously dragged out of the car by another officer and immediately handcuffed and searched.

21. After asking the officers multiple times what was going on, the men were eventually told that the car was reported stolen. This was not true. The car was lawfully rented, and Plaintiffs had the paperwork to prove it.

22. Both Plaintiffs were wrongfully searched, seized, and arrested without their consent or probable cause.

23. The Individual Defendants also assaulted and battered Plaintiffs, employing excessive force, including the discharge of a taser into Grant.

24. Plaintiffs' property, including the car and its interior compartments, was also searched multiple times without consent or probable cause.

25. After Defendants realized that the car was not in fact stolen, Richards' cuffs were taken off, and Grant was escorted out of the police cruiser and into an ambulance, where he was

uncuffed and taken to a hospital to remove the taser prongs. The prongs penetrated Grant's jacket and shirt, lodged into his skin, and required the use of a scalpel to remove.

THE INJURIES TO PLAINTIFFS

26. This action seeks damages on behalf of Plaintiffs for the extraordinary emotional pain and suffering, loss of liberty, and physical injuries they were forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

FIRST CLAIM FOR RELIEF: EXCESSIVE FORCE UNDER 42 U.S.C. § 1983 AGAINST THE INDIVIDUAL DEFENDANTS

27. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

28. The Individual Defendants used physical force against Plaintiffs.

29. Plaintiffs' seizure and detention at the hands of the Individual Defendants was made in the absence of probable cause. The unwanted physical contact was therefore unlawful and unconstitutional.

30. Even assuming arguendo that Plaintiffs' arrests were lawful, the Individual Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to both men.

31. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived their civil rights to be free from unreasonable or unlawful searches and seizures as guaranteed under the Fourth Amendment to the United States Constitution, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

32. As a result of the above unconstitutional conduct, Plaintiffs was suffered severe physical, economic, and emotional injuries, and the Individual Defendants are liable to Plaintiffs for punitive damages.

**SECOND CLAIM FOR RELIEF:
ILLEGAL SEARCH UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

33. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

34. The Individual Defendants searched Plaintiffs without probable cause to do so.

35. The Individual Defendants also searched Plaintiffs' personal effects, including the interior compartments of their vehicle, without probable cause to do so.

36. Even if there was probable cause, the manner in which these searches were conducted was objectively unreasonable.

37. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived their civil rights to be free from unreasonable or unlawful searches and seizures as guaranteed under the Fourth Amendment to the United States Constitution, and the Individual Defendants therefore are liable to Plaintiffs for damages under 42 U.S.C. § 1983.

38. As a result of the above unconstitutional conduct, Plaintiffs was suffered severe physical, economic, and emotional injuries, and the Individual Defendants are liable to Plaintiffs for punitive damages.

**THIRD CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

39. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

40. The Individual Defendants restrained and arrested Plaintiffs without probable cause.

41. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived their civil rights to be free from unreasonable or unlawful searches and seizures as guaranteed under the Fourth Amendment to the United States Constitution, and the Individual Defendants therefore are liable to Plaintiffs for damages under 42 U.S.C. § 1983.

42. As a result of the above unconstitutional conduct, Plaintiffs was suffered severe physical, economic, and emotional injuries, and the Individual Defendants are liable to Plaintiffs for punitive damages.

**FOURTH CLAIM FOR RELIEF:
FAILURE TO INTERVENE AND CONSPIRACY UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

43. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

44. The Individual Defendants failed to intervene to prevent, end, or report the unlawful and unconstitutional conduct to which Plaintiffs were subjected, despite the fact that they had opportunities to do so.

45. The Individual Defendants thereby displayed deliberate indifference to Plaintiffs' rights, including Plaintiffs' right to be free from unreasonable and unlawful searches and seizures.

46. The Individual Defendants also agreed among themselves and with other individuals to act in concert and thus conspired to deprive Plaintiffs of clearly their established civil rights.

47. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Constitution of the United States, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 USC § 1983.

48. As a result of the above unconstitutional conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

49. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

FIFTH CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK

50. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

51. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978), because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

52. Specifically, the City of New York and the New York City Police Department have a pattern and practice of pulling over or otherwise unlawfully seizing, searching, and assaulting black men without probable cause.

53. As a result, the City of New York is liable for any damages caused, except for punitive damages.

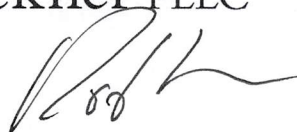
WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
April 27, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Ste. 1603
New York, New York 1005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff .
- 2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
April 27, 2021

Rickner PLLC

By: 

Rob Rickner

14 Wall Street, Ste. 1603
New York, New York 1005
Phone: (212) 300-6506
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